

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

DECISION

Application no. 81928/12
Olga Dmitriyevna BLATOVA against Russia
and 6 other applications
(see appended table)

The European Court of Human Rights (Third Section), sitting on 2 February 2023 as a Committee composed of:

Darian Pavli*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having regard to the above applications lodged on the various dates indicated in the appended table,

Having regard to the observations submitted by the respondent Government,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The list of applicants is set out in the appended table.

The applicants' complaints under Article 11 of the Convention concerning the restrictions on location, time or manner of conduct of public events were communicated to the Russian Government ("the Government"). In applications nos. 39218/13 and 1897/14, complaints based on the same facts were also communicated under Article 13 of the Convention (see the appended table).

THE LAW

A. Joinder of the applications

Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single decision.

B. Complaints under Article 11 of the Convention (restrictions on location, time or manner of conduct of public events) and Article 13 of the Convention (lack of effective domestic remedies)

The applicants complained about the restrictions imposed by the authorities on the location, time or manner of conduct of public events and the absence of an effective domestic remedy in that regard.

The Court observes that the applicants challenged the decisions of local authorities disapproving the locations of their public events in the domestic courts under the Code of Civil Procedure. The applicants brought these proceedings after the planned dates of their public events. The Court has already found in *Alekseyev v. Russia* (nos. 4916/07 and 2 others, §§ 99 and 100, 21 October 2010) that the judicial remedy of a post-hoc character the applicants had recourse to was incapable of providing adequate redress in respect of the alleged violations of Article 11 of the Convention. The applicants therefore should have been aware of the ineffectiveness of the judicial review as a remedy in respect of their complaints so as to reasonably anticipate the application of the six-month requirement in their case (see, for similar approach, *Alekseyev and Others v. Russia*, nos. 14988/09 and 50 others, §§ 14-16, 27 November 2018). Accordingly, they should have lodged their complaints within six months of the date of the local administrations' decisions banning their public events (see *Komarova v. Russia* (dec.) [Committee], no. 44570/11, § 18, 26 May 2020).

In view of the above, the Court finds that these complaints are inadmissible for non-compliance with the six-month rule and must be rejected in accordance with Article 35 §§ 3 and 4 of the Convention.

For these reasons, the Court, unanimously,

Decides to join the applications;

Declares the applications inadmissible.

Done in English and notified in writing on 2 March 2023.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention (restrictions on the location, time or manner of conduct of public events)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Location Date of the public event planned	Restrictions applied	Decision by local authority Name of local authority Date	Final domestic decision (type of procedure) Date Name of the court	Other complaints under well-established case-law
1.	81928/12 23/11/2012	**Olga Dmitriyevna BLATOVA** 1976	Nugayeva Svetlana Yuryevna Moscow	Near the Government building Moscow 12/09/2011	Proposal to change the location	Deputy Prefect of the Central Administrative Circuit of Moscow 09/09/2011	Judicial review under the Code of Civil Procedure 25/05/2012 Moscow City Court	—
2.	36095/13 20/05/2013	**Aleksey Lvovich BOLGAROV** 1960 **Konstantin Leonidovich YERSHOV** 1963	—	St. Isaac's square St. Petersburg 19/08/2012 07/10/2012	Proposal to change the locations and/or time of the events	St Petersburg Government 10/08/2012 28/09/2012	Judicial review under the Code of Civil Procedure 20/11/2012 (event of 19/08/2012) 22/01/2013 (event of 07/10/2012) St Petersburg City Court	—
3.	39218/13 30/04/2013	**Viktor Borisovich SOROKIN** 1969	Savina Anna Andriyanovna Novosibirsk	Krasnyy Prospekt Novosibirsk 27/02/2012 28/02/2012	Proposal to change the location	Novosibirsk City Administration 17/02/2012 (received on 20/02/2012)	Judicial review under the Code of Civil Procedure 13/11/2012 Novosibirsk Regional Court	Art. 13 - lack of any effective remedy in domestic law - to complain about the violation of Article 11 rights
4.	44329/13 20/02/2012	**Yuliya Nikolayevna MAMAYEVA** 1979	—	Tyumen, several manifestations between 28/03/2011 and 03/04/2011	Refusals because other events were planned on the same dates at the desired venues	Tyumen City Administration 18/03/2011 22/03/2011	Judicial review under the Code of Civil Procedure 22/08/2011 Tyumen Regional Court	—

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5.	1897/14 22/11/2013	**Sofya Andreyevna MIKHAYLOVA** 1986	—	Near Aeroflot Office Moscow 25/10/2012	Refusal to approve the event	Department for Regional Security of Moscow 17/10/2012	Judicial review under the Code of Civil Procedure 28/05/2013 Moscow City Court	Art. 13 – lack of any effective remedy in domestic law in relation to Article 11 complaint
6.	10372/14 23/12/2013	**Siranush Khachaturovna MOSHIYAN** 1963	—	Lenin Monument Rostov-on-Don 31/03/2013	Proposal to change the location	Rostov-on-Don City Administration 20/03/2013	Judicial review under the Code of Civil Procedure 24/06/2013 Rostov Regional Court	—
7.	17840/14 01/08/2013	**Viktor Borisovich SOROKIN** 1969	—	Novosibirsk, several manifestations between 16/01/2012 and 19/01/2012	Refusal because the applicant failed to comply with the time-limits for lodging notifications under the domestic law	Novosibirsk City Administration 30/12/2011 (received on 12/01/2012)	Judicial review under the Code of Civil Procedure 30/09/2013 Novosibirsk Regional Court	—